

25STCV21732 25STCV21732

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV21732 Hearing Date: July 17, 2026 Dept: 513

Aguirre v. North Oak Real Estate

Investments, Inc. 25STCV21732

Ex

Parte Application 7/17/26

On July

16, 2026, plaintiffs filed an Ex Parte Application for Temporary Restraining Order to Prevent Demolition of Tenant Garage and Storage Spaces and for Order to Show Cause re Preliminary Injunction ("Ex Parte Application"), which was set on the court's July 17, 2026 calendar.

The

court denies plaintiffs' Ex Parte Application in its entirety.

As to plaintiffs'

ex parte application for a temporary restraining order and order to show cause re preliminary injunction, "[a] superior court must evaluate two interrelated factors when ruling on a request for a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) Here, the court finds that plaintiffs have not met their burden to show by competent evidence that (1) plaintiffs are likely to prevail at trial on the merits of their claim that the conduct they seek to enjoin violates the Los Angeles Municipal Code (LAMC) Tenant Anti-Harassment Ordinance (LAMC sections 45.33 and 45.35) under their first cause

of action alleged in the complaint, or (2) the interim harm that the moving plaintiffs would be likely to sustain if the restraining order/injunction were denied would be greater than the harm the defendants would be likely to suffer if the restraining order/injunction were issued. The court therefore denies plaintiffs' ex parte application for a temporary restraining order.

The court also finds that plaintiffs have not met their burden of making a showing by competent evidence to support their ex parte application to issue an order to show cause re preliminary injunction. The court therefore denies that request and declines to issue an order to show cause re preliminary injunction.

The court orders defendants to give notice of this order.